Case Management/Electronic Case Filing System (CM/ECF)E-Rules

The following E-Rules govern the submission of documents through the CM/ECF system in cases before the U.S. Court of Appeals for Veterans Claims (the Court). These E-Rules may be amended from time to time, with or without prior notice, by further order of the Court. The Court may deviate from these E-Rules in specific cases as deemed appropriate.

Beginning October 1, 2026, these E-Rules will also apply to the Court's new case management system, the Appellate Case Management System (ACMS). For the purposes of the Court's Rules, references to "CM/ECF" or "CM/ECF Users" include ACMS and ACMS Users, respectively. All new cases filed on or after October 1, 2026, will be filed in ACMS. All cases filed before that date will remain in CM/ECF. Rules specifically related to ACMS are forthcoming.

E-Rule 1 – Definitions

(a) For the purposes of these E-Rules:

(1) The term "CM/ECF" means Case Management/Electronic Case Filing. CM/ECF is an automated system for case management and document filing.

(2) The term "electronic signature" refers to an electronic symbol attached to or associated with an electronic document and executed or adopted with the intent to sign the document. An electronic signature shall be positioned on a document in the place where a signature would normally appear. To indicate the authority of the signatory, an electronic signature will typically consist of an "/s/" followed by the typed name and title of the signatory. The following is an example of how a document with an electronic signature will appear:

Submitted,

/s/ John S. Doe
John S. Doe, Attorney

In general, the "/s/" format for electronic signatures is used for CM/ECF Users' submissions; e-mail filings from self-represented parties, including informal briefs; an Appellant/Petitioner's electronic signature on Court forms; and any other relevant submission.

The Court will also accept an electronic signature from a commercial provider that complies with the Electronic Signatures in Global and National Commerce Act (ESIGN) (15 U.S.C. § 7001), including on documents where multiple signatures may be present (e.g., a fee agreement).

(3) The term "CM/ECF User" means a registered CM/ECF participant (party or representative).

(4) The term "locked" means that an electronic file will be inaccessible to the public and only accessible to CM/ECF Users in a particular case.

(5) The term "log-in" means the password and username issued to each CM/ECF User.

(6) The term "Notice of Docket Activity" means an electronic notification generated by the CM/ECF system that is transmitted by email to all parties and representatives for that case. This Notice of Docket Activity constitutes "notice" and "service" to all CM/ECF Users who have registered for electronic filing participation in a particular case.

(7) The term "official record" means the electronic version of a document that is stored by the Court within the CM/ECF system, which is time and date-stamped by CM/ECF when filed.

(8) The term "password" means a sequence of characters and letters used to verify the authenticity of a CM/ECF User's log-in.

(9) The term "PDF" means portable document format. PDF is a universal electronic file format designed to allow documents to be viewed, navigated, and printed from any computer.

(10) The term "personal identifier" means a Social Security number, date of birth, financial account number, or name of a minor child. It is each CM/ECF User's responsibility to redact personal identifiers from any documents filed electronically that are not designated as locked documents.

(11) The term "pro bono limited appearance" refers to participation by a pro bono representation program for purposes of filing a motion for stay of proceedings, pursuant to Rule 5 of the Court's Rules of Practice and Procedure. U.S. VET. APP. R. 5.

(12) The term "single consolidated document" means the electronic conversion of multiple documents into one word processing document that will become the single PDF document.

(13) The term "Non-CM/ECF User" means a self-represented or other party exempted by the Court from using the CM/ECF system.

E-Rule 2 - Scope of Electronic Filing

(a) Except as otherwise prescribed, all cases filed in the Court are assigned to the CM/ECF system. Administrative matters, including attorney disciplinary actions and judicial complaints, are not assigned to CM/ECF.

(b) Self-represented parties are exempt from submitting documents through CM/ECF, but may submit any document as an attachment to an email to the Clerk of Court at self-rep@uscourts.cavc.gov. All documents attached to emails must be in pdf format; have at the top the names of the parties and the docket number of the case, if one has been assigned; and bear an electronic signature. Also, the subject line of the email forwarding the document should include the name of the document (e.g., Motion to Dispute RBA), the names of the parties and the docket number of the case, if available. *See* Rule 25(b)(3) (Method and Timeliness-Email); E-Rule 1(a)(2) and (9)(Definitions); and E-Rule 10(Electronic Signatures).

(c) Except for documents initiating cases in the Court (such as a Notice of Appeal or petition for extraordinary relief), all submissions filed by a representative must be filed electronically using CM/ECF. *But see* (e) below. For documents initiating a case, in addition to conventional methods of filing, *see* U.S. VET. APP. R. 3, 4, 25, such documents may also be filed by attaching the document to an email sent to esubmission@uscourts.cavc.gov.

(d) If a document is filed electronically, paper copies are not to be filed. The Court may request paper copies of electronically filed documents as needed, and the CM/ECF User must

promptly file the requested copies.

(e) Upon motion and a showing of good cause, the Court may exempt a representative from these provisions and authorize filing by means other than use of CM/ECF.

(f) All electronic documents must be filed in pdf format.

E-Rule 3 -CM/ECF Eligibility, Registration, Passwords

(a) All representatives before the Court must register as CM/ECF Users by reviewing the information supplied on the Court's website www.uscourts.cavc.gov and completing the appropriate registration form.

(b) A pro bono limited appearance will have CM/ECF User status commencing at the time a motion for a stay of proceedings for the purpose of conducting case evaluation is filed. *See* U.S. VET. APP. R. 5. Such CM/ECF User status will cease when any stay granted is lifted.

(c) Completion of the Court's CM/ECF filer registration constitutes consent to electronic service through CM/ECF of all documents as provided in these E-Rules and Misc. Order 19- 07.

(d) CM/ECF Users agree to protect the security of their passwords and immediately notify the CM/ECF Help Desk (202-418-3453) if they learn that their password has been compromised. CM/ECF Users may be sanctioned for failure to comply with this provision.

(e) A CM/ECF User who does not have any open cases with the Court and who desires to become inactive may withdraw from participation in CM/ECF. Withdrawal is accomplished by providing the Clerk with written notice (to efiling@uscourts.cavc.gov) of the intent to withdraw. *See also*

E-Rule 2(e).

E-Rule 4 - Locked Documents, Redaction

(a) All CM/ECF Users must strive to protect personal identifiers. In order to allow electronic access to documents, but also to protect personal privacy and other legitimate interests, certain documents in a case will be accessible to the public using CM/ECF, and certain documents will be locked and available only to CM/ECF Users in that case.

(b) Once a Notice of Appeal is received by the Court, the Clerk will docket the appeal, designate the Secretary as the appellee, and create an electronic record of the Notice of Appeal. See U.S. VET. APP. R. 4(b). Because the Notice of Appeal will likely contain personal identifiers, that electronic record will be locked and accessible through CM/ECF only to CM/ECF Users in that case.

(c) Once a petition for extraordinary relief is received by the Court, the Clerk will docket the petition, designate the Secretary as the respondent, and create an electronic record of the petition. See U.S. VET. APP. R. 21(a).

i. If a petition for extraordinary relief is received by the Court and the petitioner is represented, the petitioner must file at least <u>two</u> separate documents under separate docket entries: (1) the petition for extraordinary relief with any necessary personal identifiers; and (2) the petition for extraordinary relief with any personal identifiers redacted. The electronic record of the petition for extraordinary relief that contains personal identifiers will be locked and accessible through CM/ECF only to CM/ECF Users in that case. The electronic record of the redacted petition for extraordinary relief will not be locked and will be accessible to the public.

ii. If a petition for extraordinary relief is received by the Court and

the petitioner is not represented, any document containing personal identifiers will be locked and accessible through CM/ECF only to CM/ECF Users in that case. Any document that does not contain personal identifiers will not be locked and will be accessible to the public.

Self-represented petitioners are encouraged to use Form 5 (Self-Represented Petition for Extraordinary Relief Form) in the Appendix of Forms.

(d) When the Secretary files the Board of Veterans' Appeals decision in a particular case, *see* U.S. VET. APP. R. 4(c), the Secretary must file at least two separate documents under separate docket entries: (1) a reference transmittal identifying the Board decision with any necessary personal identifiers; and (2) the Board decision with any personal identifiers redacted.

(e) The Record of Proceedings that the Secretary must file pursuant to Rule 28.1 of the Court's Rules of Practice and Procedure will be locked and available only to CM/ECF Users in that case. *See* U.S. VET. APP. R. 28.1.

E-Rule 5 - Effects of Filing Through CM/ECF

(a) Electronic filing of a document with the Court consistent with these E-Rules, and the transmission of a notice of docket activity from the Court, constitutes filing of the document under Rules 4 and 25(c)(1) of the Court's Rules of Practice and Procedure. U.S. VET. APP. R. 4, 25.

(b) The Court will not accept for electronic filing any document that is not legible, complete, and in PDF format. When a document has been filed electronically, the official record is the electronic document stored by the Court, and the CM/ECF User is bound by the official record.

(c) A document filed electronically is deemed filed at the time and date stated on the notice of docket activity generated by CM/ECF. To be timely filed on a specific date, electronic filing must be completed before midnight Eastern Time, as shown on the notice of docket activity.

(d) If a CM/ECF-submitted electronic document is not timely filed because of a power failure or other emergency circumstance, a CM/ECF User must notify the Court in a timely manner, explain the reasons for such circumstance, and seek appropriate relief.

(e) A CM/ECF User who is adversely affected by a technical failure at the Court in connection with filing or receipt of an electronic document may seek appropriate relief from the Court.

E-Rule 6 - Service of CM/ECF Documents

(a) The Court's electronically-generated notice of docket activity constitutes service of the filed document on all CM/ECF Users in that case. Parties who are not registered CM/ECF Users or CM/ECF-exempt representatives must be served conventionally (in accordance with Rule 25(b) and (c) of the Court's Rules of Practice and Procedure) with a copy of any document filed electronically. U.S. VET. APP. R. 25.

(b) The Secretary is always considered a CM/ECF User. The Secretary shall provide to the Court a general email address where notices of docketing activity may be sent in any case prior to the entry of an appearance of a specific attorney.

E-Rule 7 - Attachments and Exhibits

Unless the Court permits or requires traditional paper filing, CM/ECF Users must submit all documents such as exhibits or

attachments as a single consolidated document in electronic PDF format. If a CM/ECF User submits a PDF document consisting of more than one attachment or exhibit, then the first page of the consolidated PDF should be a table of contents corresponding to the pagination of the PDF file.

E-Rule 8 - Sealed Documents

CM/ECF Users must file sealed material or motions to seal using CM/ECF and a specific docket entry (SEALED DOCUMENT FILED). Sealed material must also be filed in accordance with Rule 48 of the Court's Rules of Practice and Procedure, which requires filing the material with a motion to seal. If the motion is granted, electronic access to the sealed material will be automatically limited to the Court and CM/ECF Users in that case. *See* U.S. VET. APP. R. 48.

E-Rule 9 - Retention Requirements

(a) Documents that are electronically filed and require an original signature of a person other than the CM/ECF User must be maintained in paper form by the CM/ECF User for a period of one year after issuance of the Court's final mandate in the case. *See* U.S. VET. APP. R. 37(c).

(b) On request of the Court, the CM/ECF User must provide original documents for review. *See* E-Rule 2(d).

E-Rule 10 - Electronic Signatures

(a) Electronic signatures are permitted as described in E-Rule 1(a)(2).

(b) CM/ECF Users are responsible for protecting the security and

integrity of a CM/ECF User's log-in and password. No person may knowingly permit or cause to permit a CM/ECF User's log- in and password to be used by anyone other than an authorized agent of the CM/ECF User. See E-Rule 3(e).

(c) Electronic signatures are considered valid signatures. See E-Rule 1(a)(2). If any individual objects to the representation of his or her signature on an electronic document, he or she must, within 10 calendar days of its filing, file a notice setting forth the basis of the objection.

E-Rule 11 - Notice and Entry of Court-Issued Documents

(a) Upon issuance of a notice, order, memorandum decision, opinion, entry of judgment, or mandate in a case assigned to CM/ECF, a notice of docket activity is automatically generated and transmitted to CM/ECF Users in the case. Electronic transmission of the notice of docket activity constitutes the notice and service required by Rules 36(b) and 45(c) of the Court's Rules of Practice and Procedure. U.S. VET. APP. R. 36, 45.

(b) Unless a self-represented party or representative exempted by the Court from using CM/ECF elects otherwise, the Clerk will send a copy in paper form of any Court-issued documents to a party who is a Non CM/ECF User. *See* U.S. VET. APP. R. 45(c). A Non-CM/ECF User may elect to receive Court - issued documents via email by submitting written notification to the Clerk. The written notification may be submitted by mail, fax (to (202) 501-5848), or email (a self-represented party should use self-rep@uscourts.cavc.gov; a representative exempted by the Court from CM/ECF should use efiling@uscourts.cavc.gov.)

(c) Except as otherwise provided by the Court's Rules of Practice and Procedure or a Court order, all actions of the Court relating to cases filed and maintained in the CM/ECF system will

be filed electronically in accordance with these E- Rules, which will constitute entry on the docket maintained by the Clerk under Rule 45(b) of the Court's Rules of Practice and Procedure. U.S. VET. APP. R. 45.

(d) A judicial order or other Court-issued document filed electronically without the original signature of a Judge or authorized Court personnel, but that includes an electronic signature, has the same force and effect as if the Judge or authorized Court personnel had signed a paper copy of the order.

E-Rule 12 - Technology and Compatibility

All CM/ECF Users must create and maintain an electronic filing system compatible with the Court's CM/ECF system. The failure to create and maintain an electronic filing system compatible with the Court's electronic filing system will not be accepted as a reason for the failure to timely file any electronic document. The Court's electronic filing system may be periodically modified or upgraded, and all CM/ECF Users must modify or upgrade their electronic filing system to maintain compatibility. Every effort will be made by the Court to provide advance notice of system modifications or upgrades that may impact CM/ECF Users.

E-Rule 13 - Public Access

(a) Except for the cases sealed under Rule 48 of the Court's Rules of Practice and Procedure, documents filed electronically are public documents and once filed are not protected by federal privacy statutes or regulations. Documents filed electronically are automatically linked to automated docket entries without prior review by personnel of the Court. Because of the worldwide access to these electronic records, this fact should be carefully considered by all parties when filing documents. *See*

U.S. VET. APP. R. 48.

(b) It is the responsibility of all parties to refrain from and prevent the filing with the Court of any electronic document that will not be locked that contains personal identifiers or information such as medical information otherwise protected by privacy statutes or regulations or that is deemed personal in nature and not necessary for the resolution of the matters under consideration by the Court. Redaction of private information not necessary for the resolution of the matters before the Court from documents submitted through CM/ECF or by email or fax is permitted. Parties wishing to challenge such redactions may do so by filing a motion with the Court within 15 days of the document's filing. *See* U.S. VET. APP. R. 6.